

		Monetary sanctions are imposed against plaintiff Clinton Whisler in the amount of \$1,500.00, payable to counsel for moving party within 15 business days. (Code Civ. Proc., § 871.26, subd. (j)(1).) Moving party shall give notice.
4	RV 2020, LLC vs. Peterson 2026-01553542	Motion – Other (to Compel Judicial Reference and Stay Litigation) Defendants RV RES I, LLC and George Peterson’s motion for judicial reference is GRANTED in part and DENIED in part. (Code Civ. Proc., § 638 [authorizing motion].) Defendants’ objection no. 3 to the Sussman Declaration is SUSTAINED (improper opinion). Defendants’ remaining objections are OVERRULED. Both parties’ requests for judicial notice are GRANTED. (Evid. Code 452, subd. (d) [court records].) With the exception of the stipulation and order filed on 8-6-25 in Case No. 2025-01487927, judicial notice is limited to the fact that the documents were filed, but not of the truth of their contents. (In re Vicks (2013) 56 Cal.4th 274, 314 [“while courts are free to take judicial notice of the existence of each document in a court file, including the truth of results reached, they may not take judicial notice of the truth of hearsay statements in decisions and court files;” emphasis in original; internal citation omitted]; see also Williams v. Wraxall (1995) 33 Cal.App.4th 120, 130, FN 7 [judicial notice of truth of documents in court files ordinarily limited to orders, statements of decision, and judgments].) The motion is GRANTED as to defendant RV RES I, LLC. The court finds that there is an Operating Agreement between the parties requiring disputes be resolved by judicial reference, and that plaintiff’s claims in this action involve this defendant’s performance

		under the Operating Agreement. (Peterson Decl., ¶ 3, Ex. 1 [Complaint in Case No. 2025-01487927], Ex. D thereto [RV DEV LLC Operating Agreement] at § 23.1, requiring resolution of “any controversy or dispute between the parties arising out of this Agreement” to be “heard by a referee under the provisions of the California Code of Civil Procedure, Section 638 – 645.1”]; Rice v. Downs (2016) 248 Cal.App.4th 175, 186–187 [agreements requiring arbitration of “any dispute,” “controversy,” or “claim” “arising under” or “arising out of” the agreement encompass disputes “relating to the interpretation and performance of the agreement;” emphasis added]; see also O'Donoghue v. Superior Court (2013) 219 Cal.App.4th 245, 261 [while there are differences between arbitration and judicial reference, arbitration cases are “informative”].) Accordingly, plaintiff is ordered to resolve its claims against defendant RV RES I, LLC through judicial reference, pursuant to the parties’ agreement. The motion is DENIED as to defendant Peterson, who did not execute the Operating Agreement in his individual capacity, and who has not shown that he may enforce the judicial reference provision as a nonsignatory. (Filippo Industries, Inc. v. Sun Ins. Co. of New York (1999) 74 Cal.App.4th 1429, 1442 [“Where the signature as agent and not as a principal appears on the face of the contract, the principal is liable and not the agent”]; Cohen v. TNP 2008 Participating Notes Program, LLC (2019) 31 Cal.App.5th 840, 866 [the “general rule” is that “a representative who signs a contract as a corporate officer or agent is not a party to the contract in his or her personal capacity”]; Benaroya v. Willis (2018) 23 Cal.App.5th 462, 469 [grounds for nonsignatory enforcement in the arbitration context].) The Court orders this matter stayed pending completion of judicial reference. This action does not involve identical parties and claims as Case No. 2025-01487927, so as to support a demurrer based on another action pending.
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		(Code Civ. Proc., § 430.10, subd. (c); Plant Insulation Co. v. Fibreboard Corp. (1990) 224 Cal.App.3d 781, 789.) Nonetheless, the Court exercises its inherent authority to stay the remainder of this action pending completion of the judicial reference, in order to avoid the possibility of conflicting rulings, and perhaps foster judicial economy. (Code Civ. Proc., § 187 [court's inherent authority]; Adams v. Paul (1995) 11 Cal.4th 583, 593 [court may order stay to avoid risk of inconsistent pleadings or judgments].) The Case Management Conference scheduled for 10-12-26 is VACATED. The Court sets a Status Conference re: Judicial Reference for June 7, 2027 at 9 AM. Moving parties shall give notice of all the above.
5	Lopez vs. Gyutan Tsukasa USA, Inc. 2021-01193736	Motion to Compel Deposition (Oral or Written) When a PMK designee fails to come prepared to testify on the noticed topics, the deposing party is entitled to relief. In Maldonado v. Superior Court, (2002) 94 Cal.App.4th 1390, the court held that ICG should have been ordered to bring their witnesses back to the depositions with the documents requested and with proof that the witnesses had undertaken some effort to familiarize themselves with the areas of their supposed knowledge. The court found there was no basis for denying the motion to compel in that circumstance, and the trial court's denial of the motion was error. Maldonado, id. The Maldonado court further explained that when a request for documents is made in the deposition notice, the deposition witness or someone in authority is expected to make an